

Amendment No. 1 to SB0953

Briggs
Signature of Sponsor

AMEND Senate Bill No. 953

House Bill No. 977*

by deleting the language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 8-36-211, is amended by adding the following new subsections:

(i)

(1) After July 1, 2025, a political subdivision may adopt a supplemental bridge benefit for members who are in positions covered by the mandatory retirement provisions of § 8-36-205(a)(2). This supplemental bridge benefit will apply to those members retiring on or after the effective date of the resolution adopted by the political subdivision's chief governing body, and who have reached fifty-five (55) years of age, but less than sixty-two (62) years of age. The supplemental bridge benefit and any cost-of-living adjustments attributable to that benefit must commence on the member's effective date of retirement or on the first day of the month following the month the member reaches fifty-five (55) years of age, whichever is later. Members retiring between fifty-five (55) and sixty (60) years of age shall be paid the supplemental bridge benefit for a period not to exceed seven (7) years after the member's effective date of retirement. Members retiring after reaching sixty (60) years of age, but no later than sixty-two (62) years of age shall be paid the supplemental bridge benefit until the member reaches sixty-seven (67) years of age. The supplemental bridge benefit and any cost-of-living adjustments attributable to the benefit must cease on the first day of the month following the month in which the member dies, or on the first day of

the month following the last month of the supplemental bridge benefit payments, whichever occurs first.

(2) Notwithstanding § 8-35-251, after July 1, 2025, political subdivisions that have previously adopted a supplemental bridge benefit prior to July 1, 2025, may adopt, through a resolution passed by the political subdivision's chief governing body, the supplemental bridge benefit under subdivision (i)(1). The political subdivision's change to the supplemental bridge benefit under subdivision (i)(1) will be irrevocable, and the political subdivision shall not be permitted to elect the previously adopted supplemental bridge benefit at a later date.

(j) The supplemental bridge benefit is considered a part of the retiree's retirement allowance for purposes of chapter 36, part 8 of this title.

SECTION 2. Tennessee Code Annotated, Section 8-36-211(g), is amended by deleting the subdivision and substituting:

(g) Subdivision (f)(1) becomes effective on July 1, 1998, for service covered under subsection (a), or upon the effective date of the mandatory retirement age provision for service covered under subsection (b). Subdivision (f)(2) becomes effective on July 1, 2007, for service covered under subsection (a), or upon the effective date of the resolution adopted pursuant to subdivision (f)(2) for service covered under subsection (b). Subdivision (i)(1) becomes available for adoption by political subdivisions July 1, 2025, and becomes effective upon the effective date of the resolution to adopt the supplemental bridge benefit provision for service covered under subsection (b), which includes the supplement bridge benefit, or the effective date of the resolution to adopt the new supplemental bridge benefit in accordance with subdivision (i)(2).

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.